The Door That Revolves, On the Record

84-355 Democracy's Data | Federal lobbying disclosures, 2024

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Everything here runs as given. Your job is to read what comes out and say what it means.

> **Read `lobbying-brief.Rmd` first.** This lab works through the same material with the code exposed. The brief tells you what the question is and why it is hard; this shows you where each number came from.

Where did that number come from?

> *"He left Congress and became a lobbyist."*

Campaign finance is money spent to decide **who wins**. This is money spent on what happens **afterwards** — and it is much larger, much less covered, and in one respect much better documented.

The **Lobbying Disclosure Act of 1995** requires anyone paid to lobby the federal government to file quarterly: who paid them, how much, what they lobbied about, which parts of the government they contacted, and — the part that makes today possible — **whether the lobbyist previously held a government position, and which one.**

Congress wrote a law requiring lobbyists to disclose that they used to work for Congress. Today we read what they filed.

> **A warning about how this lab is built.** Two of the steps ahead are about things this data cannot do: a question it cannot answer, and a money column that cannot be attributed to anything. **Those are not digressions.** They are not throat-clearing to be got through before the real findings arrive — they are the findings. A disclosure regime is worth what its records can be made to say, and the most important thing these records say is what they decline to.

Steps 1-3 — One filing, how much of the quarter this is, and the money column

```r
f  <- read.csv("data/filings.csv",   stringsAsFactors = FALSE)
lo <- read.csv("data/lobbyists.csv", stringsAsFactors = FALSE)
is <- read.csv("data/issues.csv",    stringsAsFactors = FALSE)
```

```r
en <- read.csv("data/entities.csv",  stringsAsFactors = FALSE)

c(filings = nrow(f), unique_lobbyists = nrow(lo), issue_codes = nrow(is))
```

```
#>         filings unique_lobbyists      issue_codes
#>            1500              773               76
```

```r
head(f[order(-f$amount), c("client", "registrant", "amount")], 6)
```

```
#>                                          client
#> 1039 NATIONAL ASSOCIATION OF CHAIN DRUG STORES
#> 1352            TECHNOLOGY NETWORK AKA TECHNET
#> 668                              MAXSIP TEL LLC
#> 713                      COMPASSION AND CHOICES
#> 1145  AMERICAN ASSOCIATION OF PORT AUTHORITIES
#> 623                     FLORIDA SUGAR CANE LEAGUE
#>                                      registrant  amount
#> 1039 NATIONAL ASSOCIATION OF CHAIN DRUG STORES 1800000
#> 1352            TECHNOLOGY NETWORK AKA TECHNET  770000
#> 668                           STONINGTON GLOBAL  575000
#> 713                      COMPASSION AND CHOICES  360000
#> 1145  AMERICAN ASSOCIATION OF PORT AUTHORITIES  322750
#> 623                     FLORIDA SUGAR CANE LEAGUE  310000
```

One row per **filing**: a lobbying firm (the *registrant*) reporting what it did for a *client* in one quarter.

A note on the sample, because it matters. There were **19,016** filings in the second quarter of 2024. We have **1,500** — about 8% — because the Senate's API rate-limits anonymous users to 25 records at a time and refuses to go faster. The data is public and the pipe is narrow. **Every rate below is a sample estimate; every total is a fraction of the true total.**

Steps 4-6 — The number that does not exist, what is lobbied on, and whom

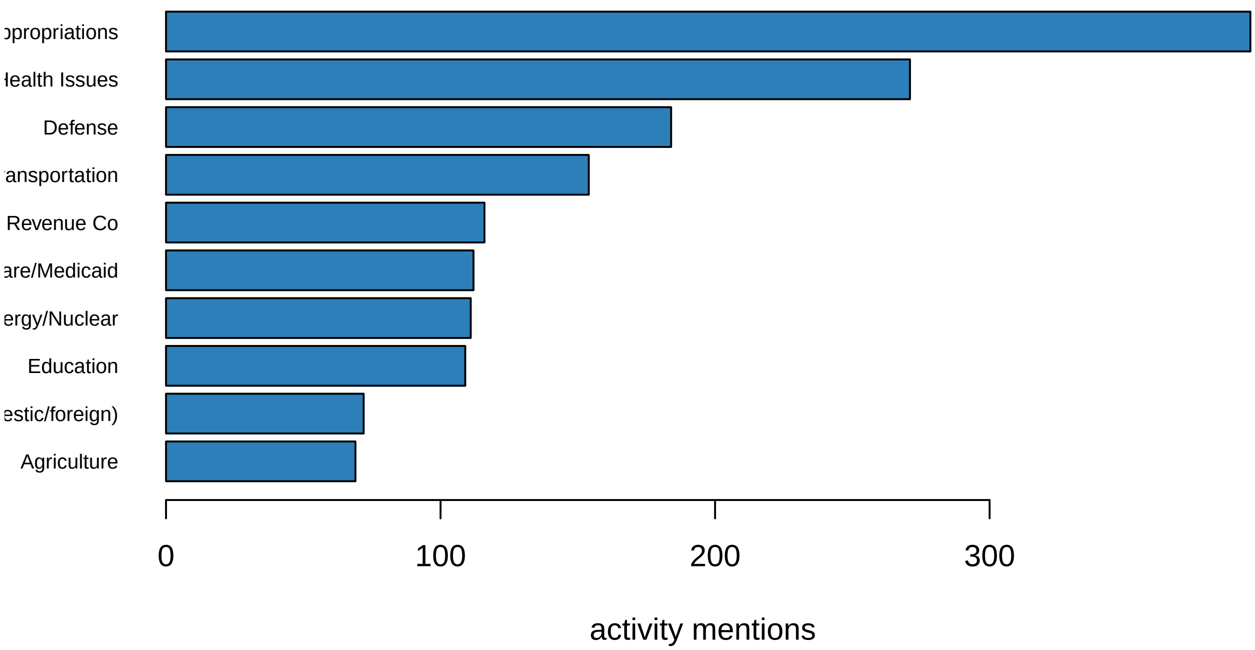
> **Try to answer an obvious question first:** how much was spent lobbying on health care this quarter? Look at the columns you have and work out whether you can get there. **The answer to that attempt is the finding.**

```r
head(is, 10)
```

```
#>                              issue mentions
#> 1            Budget/Appropriations      395
#> 2                    Health Issues      271
#> 3                          Defense      184
#> 4                   Transportation      154
#> 5  Taxation/Internal Revenue Code      116
#> 6                 Medicare/Medicaid      112
#> 7                   Energy/Nuclear      111
#> 8                        Education      109
#> 9         Trade (domestic/foreign)       72
#> 10                     Agriculture       69
```

Look at the column heading. The quantity is `mentions`, not dollars. That is where your attempt died, and it died for a reason you can see on the form: a filing reports one amount for the quarter and a list of issue areas, with no division of the money between them. Step 9 is that money column, refusing to be split.

```
top <- head(is, 10)
barplot(rev(top$mentions), horiz = TRUE, names.arg = rev(substr(top$issue, 1, 28)),
        las = 1, cex.names = 0.7, col = "#2c7fb8", xlab = "activity mentions")
```



Budget and appropriations first, then health, defence, transportation. That ordering is not about ideology. It is about **where money is decided** — the appropriations process moves more dollars than anything else Congress does, so that is where the lobbyists are.

```
head(en, 8)
```

```
#>                                          entity mentions
#> 1                      HOUSE OF REPRESENTATIVES     2511
#> 2                                        SENATE     2492
#> 3         Health & Human Services, Dept of (HHS)     145
#> 4                             White House Office     141
#> 5                  Agriculture, Dept of (USDA)       118
#> 6                              Energy, Dept of      108
#> 7                 Transportation, Dept of (DOT)      100
#> 8 Centers For Medicare and Medicaid Services (CMS)    93
```

The House and the Senate dwarf everything else, and then it is the agencies that write cheques and rules: HHS, the White House, USDA, Energy.

Steps 7-8 — The unusual field, and reading the entries

```r
lo$has_position <- nchar(lo$former_government_position) > 0
c(lobbyists = nrow(lo),
  with_former_gov_job = sum(lo$has_position),
  pct = round(100 * mean(lo$has_position), 1))
```

```
#>          lobbyists with_former_gov_job                 pct
#>              773.0               216.0                27.9
```

216 of 773 lobbyists in this sample — 27.9% — disclose a previous government position. More than one in four.

> **Before you run the next chunk, write down what you expect to see.** The Act requires a lobbyist to disclose a previous government position. A requirement like that could be satisfied with two words — "federal service" — and nobody could say it had been broken. **How specific are these twelve entries going to be?** Commit to an answer before you look: vague job categories, or named members of Congress and named committees.

```r
set.seed(84355)
sample(lo$former_government_position[lo$has_position], 12)
```

```
#>  [1] "Intern, House of Representatives"
#>  [2] "Legislative Assistant, Senator Mike Crapo"
#>  [3] "Legislative Assistant, Rep. Sherrod Brown (D-OH), 2003-2005"
#>  [4] "Sr. Director State and Federal Government Relations"
#>  [5] "Former Chief of Staff, U.S. House of Representatives"
#>  [6] "Field Representative, Sen. James Lankford 2015-2021"
#>  [7] "Sen. Josh Hawley - Legislative Director"
#>  [8] "Assistant Secretary, HUD"
#>  [9] "Intern, Sen. Gary Peters"
#> [10] "Counsel, House Judiciary Committee, 2010-2011"
#> [11] "Staff Director, House Committee on Transportation and Infrastructure; Deputy Staff Director, H
#> [12] "Principal"
```

Read them. **They are not vague, and hardly anybody writes that down.** They name the member, the committee, the agency — sometimes several in sequence, with dates — because the form asks for it.

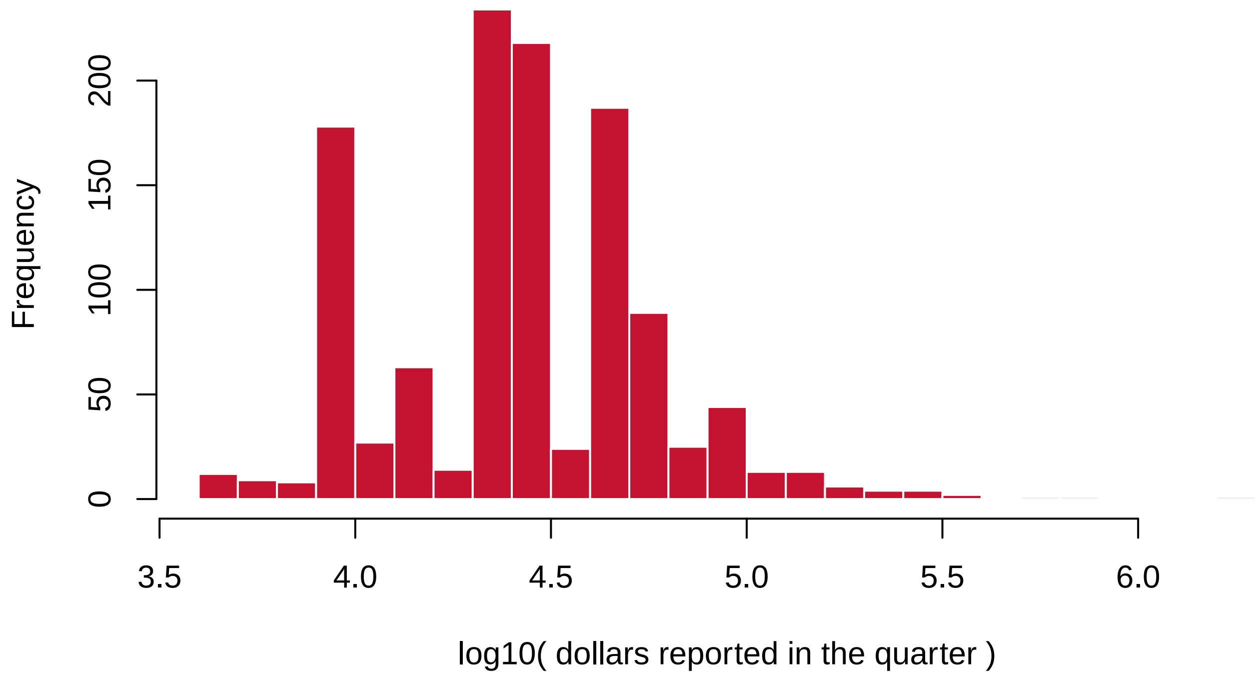
This is the fact the lab exists to deliver. The revolving door is not an inference, a leak, or an investigation. **It is a disclosure requirement**, and the government publishes the answers in a searchable database. One in four paid federal lobbyists used to be on the other side of the table, and they said so on a form.

Step 9 — The asymmetry

```r
p <- f[f$amount > 0, ]
c(filings_reporting_money = nrow(p),
  total = sum(p$amount),
  median = median(p$amount),
  largest = max(p$amount))
```

```
#> filings_reporting_money                     total                median
#>                    1177                  45087322                 30000
#>                 largest
#>                 1800000
```

```r
hist(log10(p$amount[p$amount > 0]), breaks = 30, col = "#C41230", border = "white",
     main = "", xlab = "log10( dollars reported in the quarter )")
```



A median filing reports $30,000 for the quarter. The distribution is enormously skewed — most filings are small, a few are very large.

Now notice what you cannot do with this. **The amount is per filing, not per issue and not per contact.** A firm reporting $150,000 across nine issue areas does not tell you how much went to any one of them. There is no requirement to say, so nobody does.

You also cannot see **who was met, or when**. The filing names the House, the Senate, an agency — not a person, not a date, not a meeting. Compare that to the precision of the covered-position field, and ask why one was written strictly and the other loosely.

Step 10 — What you can now say

You can say that more than a quarter of registered federal lobbyists claim a prior government position, and that many of those claims **name a specific member of Congress** — self-reported evidence of a revolving door, in a federal database.

You can say lobbying concentrates on appropriations and on Congress itself, in that order.

You cannot say how much was spent on any issue, who was actually met, when, or what was asked for. And you cannot report a national total from this sample.

The most transferable finding is about the regime, not the lobbyists. Disclosure was chosen instead of prohibition, and it was designed so that the two facts people most want — how much, on what — cannot be recovered from it.

Your turn

Change **one** thing, re-run, and write about what changed. Pick one.

Option A — Firms versus causes. Group `filings.csv` by `registrant` and by `client`. Which registrants appear most often, and what does it mean that the same handful of firms represents dozens of unrelated clients? Is that expertise or access?

Option B — Search the door. The `former_government_position` field is free text. Count how many mention "Senator", "Representative", "Chief of Staff", or a named agency (`grepl`). Which kind of former job is most common, and which would you expect to be most valuable to a client?

Option C — What the sample costs you. We have 8% of one quarter. Which of the numbers in this lab would you still trust, and which would you not? Be specific: rates versus totals versus rankings.

Option D — Your own question. 1,500 filings, 773 lobbyists, 76 issue areas.

What this lab cannot tell you

- **Whether lobbying works.** No outcomes here at all. The filings record effort and expenditure, never results.
- **The real totals.** 8% of one quarter of one year, and not a random 8% — it is whatever the API returned first. Rankings and rates are informative; sums are not.
- **Who was actually met.** The law requires naming the chamber or agency, not the person, meeting or date.
- **Anything about the unregistered.** People who influence policy without meeting the legal definition of "lobbyist" — strategic advisers, consultants under the time threshold — file nothing. **The disclosure regime measures the part of the activity that agreed to be measured.**

On the discussion board

By **Friday, 11:59 p.m.** A sentence or two is enough.

Three that would make good posts:

- More than one in four lobbyists disclosed a former government job. Is the disclosure requirement a solution to the revolving door, or a substitute for one?
- The covered-position field is precise and the money field is vague. Who benefits from that asymmetry?
- The data is public and the API hands it over 25 rows at a time. Does that count as public?

Where the data came from

United States Senate, Lobbying Disclosure Act database, filings API — second quarter of 2024. https://lda.senate.gov/api/v1/filings/

No key required, and **rate-limited to 25 records per request for anonymous users**, which is why this is a 1,500-filing sample of 19,016. The build is in `data/build-data.py`, which throttles deliberately and says so.

Reporting is required by the **Lobbying Disclosure Act of 1995**, as amended by the Honest Leadership and Open Government Act of 2007.